

STATE OF INDIANA COUNTY OF VANDERBURGH

IN THE VANDERBURGH SUPERIOR COURT CAUSE NO. 82D01-2512-CT-008032

THE ESTATE OF LEONARDO (“LEO”)

ESLINGER, et al.,

Plaintiffs,

v.

Related Case Numbers:

**26S-SJ-00061 (Supreme Court Special
Judge Appointment)**

**14D01-2603-CB-000248 (Change of
Venue from Daviess)**

**14D01-2603-CB-000258 (Change of
Venue from Daviess)**

JILLIAN N. KRATOCHVIL, and STOLL,

KEENON, OGDEN, PLLC,

Defendants.

**MEMORANDUM A: IN SUPPORT OF MOTION TO VACATE ORDER DENYING
CHANGE OF VENUE**

Plaintiffs, The Estate of Leonardo Eslinger, et al. (“Plaintiffs”), respectfully submit this memorandum in support of their Omnibus Motion to Vacate the Court’s May 6, 2026 Order Denying Plaintiffs’ Motion for Change of Venue from the County.

ARGUMENT

I. The Court’s Order was Procedurally Improper and Substantively Erroneous.

The Court’s denial of Plaintiffs’ venue motion without the benefit of the scheduled June 5, 2026 evidentiary hearing constitutes a denial of due process. A change of venue is mandatory under Indiana Trial Rule 76 when a party cannot receive a fair trial due to local prejudice or

bias. Plaintiffs' motion is not based on mere speculation, but on a documented record of systemic, structural bias so pervasive that every single judge in Vanderburgh County was forced to recuse themselves from this matter. The Indiana Supreme Court's intervention to appoint a Special Judge from outside the county (under Cause No. 26S-SJ-00061) is, by itself, prima facie evidence that a fair trial cannot be had in Vanderburgh County. A hearing is required to allow Plaintiffs to present evidence on how this judicial-level conflict infects the entire local legal community, from which a jury would be drawn.

II. The Factual Timeline Demonstrates Pervasive, Longstanding Bias.

The Court must consider the correct procedural history, which demonstrates the deeply embedded nature of the conflict. The defense has attempted to mischaracterize the timing of Plaintiffs' motion. The accurate timeline is as follows:

- **Plaintiffs originally filed their Verified Motion for Change of Venue from Vanderburgh County on December 31, 2025. Due to an e-filing system issue where the motion did not appear in the court's system, Plaintiffs refiled the motion on January 2, 2026.**
- **On January 5, 2026, Defendant Jillian Kratochvil—then Chief Judge of the Vanderburgh Superior Court—recused herself from the underlying guardianship matter, triggering a cascade of judicial recusals from every judge in Vanderburgh County.**
- **The Indiana Supreme Court intervened, and a Special Judge was appointed sometime after March 5, 2026.**
- **Because the venue motion had not been ruled upon amid the judicial recusals, and to ensure the newly appointed Special Judge would have the motion properly before them, Plaintiffs refiled their Verified Motion for Change of Venue in April 2026.**

This timeline is not, as Defendants suggest, evidence of delay. It is evidence of a justice system in crisis, unable to adjudicate a case involving a sitting judge and a powerful local law firm, Defendant SKO.

III. A Fair Trial in Vanderburgh County is Impossible.

Defendant Kratochvil is not merely a party; she is a sitting judge in the very court system from which the jury pool will be selected. Jurors may know her, may have appeared before her, or may be intimidated by the prospect of rendering a verdict against a local judicial officer. Defendant SKO is one of the most prominent and influential law firms in the region, with deep ties to the local bar and business community.

This structural bias is precisely what T.R. 76 was designed to remedy. When the conflict is so profound that no local judge can hear the case, it is illogical and unjust to conclude that a panel of local jurors could be impartial. Indiana law favors granting a change of venue to ensure fairness. *See Gulf Stream Coach, Inc. v. Cronin*, 903 N.E.2d 109 (Ind. Ct. App. 2009). The denial of venue here was an abuse of discretion, made all the more prejudicial by the fact it was done without the scheduled evidentiary hearing.

"This structural bias is further demonstrated by Defendant Kratochvil's documented pattern of misconduct as Guardian ad Litem, which reveals a culture at SKO that prioritizes institutional protection over ethical obligations. Kratochvil filed her GAL report eight days late (due September 25, 2023, filed October 3, 2023), never provided the report to petitioners before the October 5, 2023 hearing, and had the report sealed before any party could challenge it. She then orally moved to withdraw just five days later, falsely claiming she had 'completed' her duties before testifying or facing challenge. This pattern—hiding conflicts, violating due process, seeking de facto immunity not afforded by statute, and prioritizing her judicial appointment over the children's interests—demonstrates the systemic nature of the bias that pervades this case and the local legal community."

"The consequences of this structural bias were not theoretical, they were devastating. Kratochvil's failure to mark the GAL report as confidential resulted in the report being obtained from the scene of Joseph and Diana's residence. Louisiana DCS relied upon this unmarked, biased report as factual when it was not, and used it against petitioners. The children were forced to remain in foster homes in Louisiana, and petitioners—despite having permanent guardianship status in Indiana—were forced to undergo a lengthy and extremely sensitive Interstate Compact on the Placement of Children (ICPC) process to prove they were safe placement. At the time when the surviving children needed the comfort and stability of their loving family the most, they were instead subjected to foster care and bureaucratic delay because of Kratochvil's failure to follow basic procedural safeguards."

CONCLUSION

For the foregoing reasons, the Court's Order of May 6, 2026, denying the Motion for Change of Venue should be vacated, and the matter should be set for the evidentiary hearing as originally scheduled. In the alternative, the Court should grant the change of venue.